

sal of a decree upon the ground of matter occurring subsequently to the decree, or subsequently discovered, or any description of bill by this Order abolished, may in future proceed by petition in the cause, which shall specially pray the relief sought, and state the ground upon which it is claimed. This petition must be verified by affidavit and served upon the solicitors of all parties interested; and in case any such party has no solicitor, then upon such party; and, where the reversal or variation of a decree is sought upon new matter, such proof as would have been requisite upon a motion to file a bill of review must be supplied. Upon the hearing of this petition the Court may, in its discretion, either make a final order, or direct the petition to stand over, with liberty to the parties interested in sustaining the decree to file a special answer to the same; and may make such order as to the production of further proof, and the manner thereof, and the future hearing of the petition, as to the Court may seem meet.

Rescinded
Orders as to
amendment.

The 1st Order of 1850 rescinds many of the former Orders specifically, and such rescinded Orders are of course omitted.

The 2nd Order of 1850 is as follows:—

All former Orders and parts of Orders not specified in Order 1, so far as the same are now in force *and consistent with these Orders*, are to remain in full force and effect.

Application to
amend must
now be to the
Court on
motion, not-
withstanding
Order 181 of
1846.

The Order 181 of 1846 is not specifically rescinded, and it provides, among other things, that applications “for leave to withdraw replication and amend Bills are to be to the Master, with an appeal, by motion, to the Court. But it will be seen, that this part of the Order of 1846 is not “consistent” with the foregoing Orders of 1850, and is therefore not in force, and all applications for leave to amend must now be to the Court, by motion, on notice.

These Orders, abolishing Supplemental and other Bills, are not after any English Orders, and therefore there is no English practice analogous to that established by them. Such Bills are still in use in England.

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